
ORS 192.427 AND FEE WAIVER DECISIONS

TO	Shasta Kearns Moore, Chair, Public Records Advisory Council
CC	Todd Albert, Public Records Advocate; Yufeng Luo, Deputy Public Records Advocate; OPRD Commission; Governor Tina Kotek; Cameron D. Miles, Government Accountability Attorney, Office of the Governor; Oregon Department of Justice, Public Records Orders
FROM	Robert Samuel White, P.O. Box 334, Reedsport, Oregon 97467
DATE	October 8, 2026
RE	ORS 192.427 as applied by the Attorney General to fee waiver decisions
TESTIMONY	v1.11
AI DISCLOSURE	How this record is made.

To the Public Records Advisory Council,

ORS 192.427 provides: “In any case in which a person is denied the right to inspect or to receive a copy of a public record in the custody of an elected official, or in the custody of any other person but as to which an elected official claims the right to withhold disclosure, no petition to require disclosure may be filed with the Attorney General or district attorney, or if a petition is filed it shall not be considered by the Attorney General or district attorney after a claim of right to withhold disclosure by an elected official.”

On October 1, 2026, Deputy Attorney General Benjamin Gutman dismissed my petition challenging the Office of the Governor’s denial of my fee waiver.¹ He wrote that the Attorney General’s authority over fee waivers “does not include the authority to review decisions made by elected officials. See ORS 192.427; Public Records Order, Oct 2, 2014, Sebens.”¹

No record has been withheld from me, and no elected official has claimed a right to withhold one. On September 22, Cameron D. Miles, Government Accountability Attorney, estimated the cost of the records at \$572.50.² On September 24, he sent instructions for payment.³

Under this reading of ORS 192.427, the Attorney General will not review a fee waiver decision by the office of any elected official in Oregon. It applies to every requester.

ORS 192.483(1)(c) directs the Council to “Identify inefficiencies and inconsistencies in application of the public records law that impede transparency in public process and government.” I ask the Council to consider this application of ORS 192.427 under that duty. The petition and the dismissal are published in full at oprdivolunteerabuse.org/records/governor/.⁴

Respectfully,

Robert Samuel White

Sources

1. [Attorney General’s order, DOJ File No. 121010-GA0187-26, October 1, 2026.](#)
2. [The fee waiver is denied: \\$572.50, September 22, 2026.](#)
3. [The payment instructions arrive, September 24, 2026.](#)

4. [Second petition for a Public Records Order, September 25, 2026.](#)